



Employer and Employee Registration Requirements

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Employer Registration

Every employer who, under a contract of service, employs **one employee or more** shall:

Requirement	Description
Register with the Housing Fund	As a contributing employer
Register Employees	Register all employees as members of the Housing Fund

Requirement	Description
Keep Records	Keep a proper and up-to-date register or record of earnings and particulars of employees
Produce Records	Produce the register or record on demand by a compliance or other officer of the Fund
Retain Records	Retain records for up to six years after termination

Employee Registration

Requirement	Description
Registration	Every employee under a contract of service shall register with the Housing Fund
Exemption	Foreigners working in Kenya are exempt from registration

Voluntary Member Registration

Requirement	Description
Eligibility	Self-employed persons who wish to become members may register as voluntary members
Age	Must be a citizen of Kenya of at least 18 years of age
Proof of Registration	Must produce proof of registration with the affordable housing scheme

Penalties for Non-Compliance

 **Failure to Register**

 **Failure to Make Contributions**

Imprisonment for up to **two years** OR fine
up to **KES 10,000** OR both

Imprisonment for up to **two years** OR fine
up to **KES 10,000** OR both

✗ Failure to Keep Records

Imprisonment for up to **two years** OR fine
up to **KES 10,000** OR both

✗ Misappropriation of Funds

Imprisonment for up to **two years** OR fine
up to **KES 10,000** OR both

📌 Quick Summary – Employer Obligations

✓ Register with the Housing Fund | ✓ Register all employees | ✓ Keep up-to-date records | ✓ Retain records for 6 years

Penalty: Up to 2 years imprisonment OR KES 10,000 fine OR both

⚠ Important Notes

- Every employer with **one or more** employees must register.
- **Foreigners** working in Kenya are exempt from registration.
- Voluntary members must be **Kenyan citizens** aged **18+**.
- Records must be produced on demand by a compliance officer.

END OF DOCUMENT

Prepared by the State Department for Housing and Urban Development, Kenya

For more information, visit the **Boma Yangu** portal.